

ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN.
JUDICIAL DEPARTMENT
Crl. Misc. No. 3762-M of 2025

Muhammad Sajid and 04 others. **Versus** The State and another.

S.No. of order/ proceeding.	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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06.05.2025. Rana Muhammad Javed Iqbal, Advocate for the petitioners.
Mr. Ashfaq Ahmad Malik, Deputy Prosecutor General alongwith Nasir Hussain, S.I.
Mr. Muhammad Fayyaz Mansab, Advocate for the complainant.

The order dated 30.04.2025, passed by learned Additional Sessions Judge, Jahanian was assailed through the present petition, whereby a criminal revision moved by respondent No.2/complainant against an order dated 30.11.2024 passed by learned Magistrate framing the formal charge, was accepted and order of the learned Magistrate dated 30.11.2024, was set aside and request for amendment in the charge was allowed.

2. Learned counsel for the petitioners maintained that a case F.I.R. No. 164/2024, dated 26.04.2024 for offence under Section 382/506/148/149 of PPC was got registered by respondent No.2 (Faisal Naeem) against the petitioners. The learned Magistrate framed the charge for offences under Section 382/506 of PPC against the petitioners/accused. Respondent No.2 (Faisal Naeem) instituted a criminal revision petition there against, which was accepted through impugned order dated 30.04.2025, passed by learned Additional Sessions Judge, Jahanian, who directed the learned trial court to frame the charge for offences under Sections 395, 455, 148 and 149 of PPC.

3. The learned counsel for the petitioners/accused claimed that the very F.I.R. was based upon false assertions and even the framing of the charge for an offence under Section 382 of PPC by the learned trial court was also not justifiable under the law; dispute purely of civil nature was existing between the petitioners/accused and respondent No.2/complainant; parties were litigating against each other; Accused persons were claiming the ownership of the petrol pump, where the occurrence allegedly took place, but respondent No.2/complainant was disputing the same.

4. The learned Deputy Prosecutor General opposed the present petition vehemently and rigorously mainly on the ground that charge is always framed of more serious offence keeping in view the facts and circumstances of the case, as such the impugned order was legal and valid for all the purposes, hence not open to any exception.

5. Arguments heard. File perused.

6. According to F.I.R. on 17.04.2024 at about 09:00 A.M. petitioners (accused) alongwith 22/25 unknown culprits, all armed with rifles/pistols emerged at the Petrol Pump of respondent No.2/complainant. They made staff members of the Petrol Pump as hostages on arm's point and removed CCTV Cameras as well as Cash amount of Rs.950,000/- and account books forcibly. They also snatched arms held by security guards, cheque book and other valuable documents and fled away from the scene.

7. Charge has always to be framed on the prima facie averments of allegations leveled in the F.I.R, statement of the witnesses under Section 161 of Cr.P.C. and report under Section 173 of Cr.P.C. According to the principles settled by honourable Superior Courts, if the

charge is framed for less serious offence, the accused cannot be convicted for graver and more serious offences unless charge is amended and parties are issued the notice and given opportunity of adducing the evidence again, but where the charge is framed for graver and more serious offence and after recording the evidence trial court comes to the conclusion that accused is liable to be convicted for less serious offence of the same family of offences, the court may convict the accused without having a resort to the above lengthy exercise.

8. Offence under Section 382 of PPC and under Section 395 of PPC relate to the same family of the offences, as such from the prima facie averments of contents of the F.I.R., statements of the witnesses recorded under Section 161 of Cr.P.C. and report under Section 173 of Cr.P.C., trial court is supposed to frame the charge for more graver and serious offence. If any reference in this regard is required that can be had from 'Ghulam Haider Buriro v. The State' (2018 MLD 469).

9. In the case in hand offences under Section 395/455/148/149 of PPC were prima facie made out, as such this above fact was rightly observed and taken into consideration by the learned Additional Sessions Judge, while passing the impugned order, which was found to be fully in consonance with the facts and law laid down by honourable Higher Courts.

10. When the learned counsel for the petitioners/accused was asked to identify any illegality, irregularity or legal error in the impugned order, he failed to point out the same.

11. For the discussion made supra, the present petition has no force, hence **dismissed in limine**.

12. Needless to mention that any observation made in the above order is tentative in nature and shall not influence the learned trial court in any manner.

(TANVEER AHMAD SHEIKH)
JUDGE

APPROVED FOR REPORTING.

JUDGE

Shahzad Ahmad Nasir